

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

Section 2.7a — Article 24 and the Alberta Repudiation: International-Law Implications of the Engineered K-12 System

Section 2.7 documented Canada's binding obligations under the *United Nations Convention on the Rights of Persons with Disabilities* (UN CRPD). Section 2.7a addresses the specific Convention article most directly implicated by the engineered K-12 architecture documented in Part One Section 1.3a: Article 24, the right to inclusive education. Section 2.7a is structured as a focused legal-comparative analysis. The section examines the substantive content of Article 24, the operational interpretation of Article 24 set out in the Committee on the Rights of Persons with Disabilities' General Comment No. 4 (2016), and the gap between Article 24's requirements and the engineered three-part system Part One Section 1.3a documented — the funding starvation that makes inclusion structurally impossible, the segregated-classroom expansion that absorbs the displaced students, and the Premier's *earn inclusion* rhetoric that provides political cover.

The section's purpose is not to assert that any specific Alberta policy decision constitutes a definitive Convention violation determinable only by the UN Committee on the Rights of Persons with Disabilities through its individual-complaint or periodic-review processes. The section's purpose is to establish the documented gap between the substantive standard Article 24 sets and the operational reality the Alberta engineered K-12 architecture describes, and to make available the international legal framework within which that gap can be evaluated. The framework is binding on Canada, applies through Canada to Alberta, and provides the substantive language within which any subsequent legal, political, or advocacy challenge to the Alberta record will be conducted.

The section has four parts. Part one documents the substantive content of Article 24. Part two documents General Comment No. 4's operational interpretation of Article 24, with attention to the Comment's distinctions among exclusion, segregation, integration, and inclusion. Part three applies the substantive standard to the documented engineered system, identifying the specific points at which the Alberta record falls short of the Article 24 obligation, with segregation identified as the central substantive violation and the funding starvation, the Premier's rhetoric, the consultation gap, and the seclusion-room expansion documented as compounding violations. Part four addresses the implications of the gap for Alberta's accessibility-legislation blueprint, which Part Three of this document develops.

Article 24: The Substantive Standard

Article 24 of the UN CRPD opens with the foundational obligation:

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States Parties recognize the right of persons with disabilities to education. With a view to realizing this right without discrimination and on the basis of equal opportunity, States Parties shall ensure an inclusive education system at all levels and lifelong learning.

The Article identifies three substantive purposes of the inclusive education system: the full development of human potential and sense of dignity and self-worth, and the strengthening of respect for human rights, fundamental freedoms, and human diversity; the development by persons with disabilities of their personality, talents, and creativity, and of their mental and physical abilities, to their fullest potential; and the enabling of persons with disabilities to participate effectively in a free society.

Article 24's operational requirements on State Parties are codified in five specific obligations:

Persons with disabilities are not excluded from the general education system on the basis of disability, and that children with disabilities are not excluded from free and compulsory primary education, or from secondary education, on the basis of disability.

Persons with disabilities can access an inclusive, quality and free primary education and secondary education on an equal basis with others in the communities in which they live.

Reasonable accommodation of the individual's requirements is provided.

Persons with disabilities receive the support required, within the general education system, to facilitate their effective education.

Effective individualized support measures are provided in environments that maximize academic and social development, consistent with the goal of full inclusion.

The five operational requirements are cumulative, not alternative. They establish that inclusive education is the structural baseline for State Party education systems, that exclusion of children with disabilities from the general education system on the basis of disability is prohibited, that reasonable accommodation is the operational mechanism by which inclusion is delivered, that the support required must be provided within the general education system rather than in segregated settings, and that the goal of all individualized support measures is full inclusion in the general education environment.

Article 24 also establishes specific obligations on State Parties regarding the means by which the inclusive education system is delivered. The Article requires the facilitation of the learning of Braille, augmentative and alternative communication, and the learning of sign language, including the recognition of Deaf culture as a distinctive linguistic and cultural community. The Article requires that *persons with disabilities are able to access general tertiary education, vocational training, adult education and lifelong learning without discrimination and on an equal basis with others*. The Article requires the employment of qualified teachers, including teachers with disabilities, and the training of all professionals and staff at all levels of education in disability awareness and inclusive education techniques.

The substantive standard Article 24 sets is, in operational terms, comprehensive. The standard applies to all levels of the State Party's education system, from pre-primary through tertiary. The standard does not contemplate exceptions for behavioural difficulty, for disability severity, or for resource constraint. Reasonable accommodation is the means by which the standard is delivered to students whose support

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requirements differ from the typical. The denial of reasonable accommodation, the operational interpretation of the Convention establishes, *counts as discrimination*. Article 24's substantive content establishes that inclusive education is, in the international legal framework, a fundamental human right of every child with a disability rather than a contingent benefit available subject to the child's behaviour or the system's resource availability.

General Comment No. 4: The Operational Interpretation

The Committee on the Rights of Persons with Disabilities adopted General Comment No. 4 (2016) on the right to inclusive education on 26 August 2016, with the Comment officially published as CRPD/C/GC/4 on 2 September 2016. The Comment is the Committee's authoritative interpretation of Article 24 and binds State Parties' implementation of the Convention in respect of education. Canada is bound by General Comment No. 4 through its ratification of the Convention.

General Comment No. 4 is structured around the central distinction the Committee draws between four educational frameworks: exclusion, segregation, integration, and inclusion. The distinctions are operationally critical. The Committee defines them as follows:

Exclusion occurs when students are directly or indirectly prevented from or denied access to education in any form.

Segregation occurs when the education of students with disabilities is provided in separate environments designed or used to respond to a particular impairment, in isolation from students without disabilities.

Integration is the process of placing persons with disabilities in existing mainstream educational institutions, as long as the former can adjust to the standardized requirements of such institutions.

Inclusion involves a process of systemic reform embodying changes and modifications in content, teaching methods, approaches, structures, and strategies in education to overcome barriers with a vision serving to provide all students of the relevant age range with an equitable and participatory learning experience and the environment that best corresponds to their requirements and preferences.

The four-framework taxonomy is operationally significant for the Part One Section 1.3a analysis. The Alberta engineered system documented in Section 1.3a is, on the General Comment No. 4 taxonomy, *segregation* operating with the political-rhetorical gloss of *integration that has not been earned*. Specialized classroom programs whose primary characteristic is the placement of students with disabilities in separate environments designed or used to respond to a particular impairment, in isolation from students without disabilities, are the operational definition of segregation under General Comment No. 4. The Edmonton Public Schools Autism Centre of Excellence, the EPSB *interactions program* into which 75 percent of new EPSB classes have been placed over the past six years, the Calgary Catholic St. Anthony school, the planned second Calgary Catholic facility for fall 2026, and the broader provincial *specialized programming* expansion are the operational manifestations of segregation as the General Comment defines it.

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The Committee's substantive position on the integration-versus-inclusion distinction is direct. General Comment No. 4 states that *integration does not automatically guarantee the transition from segregation to inclusion*. The Comment further establishes that *placing students with disabilities within mainstream classes without these adaptations does not constitute inclusion*. The substantive obligation under Article 24 is the systemic transformation of the education system to accommodate the requirements and identities of all students, not the conditional admission of students with disabilities to mainstream environments contingent on their adjustment to those environments.

The *adaptations* the General Comment identifies as the precondition for genuine inclusion are precisely the adaptations the Alberta engineered system is structurally producing less of, not more of. The funding shortfall documented in Part One Section 1.3a removes the educational-assistant capacity that is the operational mechanism for the adaptations Article 24 requires. The structural pressure operates against inclusion at the level of resource allocation, against inclusion at the level of EA staffing, against inclusion at the level of operational capacity in general education classrooms, and toward the segregated alternative where the structural pressure is absorbed.

General Comment No. 4 also establishes specific obligations on State Parties regarding the use of seclusion, restraint, and discipline practices in educational settings. The Comment establishes that schools must be safe environments in which the dignity, integrity, and human rights of students with disabilities are protected, and that disciplinary practices must not produce traumatic harm to students or operate in ways that effectively segregate students with disabilities from the mainstream educational environment. Practices that confine students involuntarily in locked rooms, that produce documented psychological trauma, and that disproportionately affect students with developmental and intellectual disabilities are, on the Comment's framework, structurally inconsistent with Article 24's substantive standard.

The Committee additionally establishes that State Parties must close institutions that segregate persons with disabilities from the mainstream educational environment and must transition existing segregated education systems to inclusive education systems. The Comment recognizes the substantial transitional difficulty this requirement entails for State Parties whose education systems have historically been organized around segregated frameworks. The Comment nevertheless establishes that the transition is required, that the timeline is the State Party's responsibility to articulate, and that resource constraint is not an acceptable basis for indefinite delay of the transition. The General Comment's substantive position on resource constraint is operationally significant for the Section 1.3a finding that Alberta is using the resource constraint of the funding shortfall as the structural mechanism through which segregation is being expanded.

The General Comment's authoritative status as the operational interpretation of Article 24 has been affirmed by State Parties, by the academic and policy literature on inclusive education, and by the Committee's subsequent practice in reviewing State Party periodic reports under Article 35 of the Convention. The Committee has used the General Comment as the substantive standard against which State Party education-system performance is evaluated. State Parties whose education systems exhibit features the General Comment identifies as inconsistent with Article 24 have been the subject of Concluding Observations recommending specific structural reform.

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The Engineered System Against the Article 24 Standard

Part One Section 1.3a documented the engineered three-part Alberta K-12 architecture: the funding starvation, the segregated-classroom expansion, and the Premier's *earn inclusion* rhetoric. Section 2.7a now applies the Article 24 substantive standard to that engineered system. The application produces seven specific findings, organized around the central finding that the segregated-classroom expansion is the substantive Article 24 violation and around six compounding findings that establish the system-wide inconsistency.

Finding 1 (central): The segregated-classroom expansion is the central Article 24 substantive violation. The Edmonton Public Schools Autism Centre of Excellence, the EPSB *interactions program* into which 75 percent of new EPSB classes have been placed over the past six years, the Calgary Catholic St. Anthony school, the planned second Calgary Catholic specialized facility for fall 2026, and the broader provincial *specialized programming* expansion produce educational environments designed or used to respond to a particular impairment, in isolation from students without disabilities. This is the operational definition of segregation under General Comment No. 4. The Aiden O'Halloran lifecycle case documented in Section 1.3a establishes the operational reality of the segregation: a Grade 6 student achieving 80 percent on math tests with targeted support transferred to a Grade 7 specialized classroom whose academic goal was reduced to *counting to 50* and who was *kept away* from his non-disabled peers underneath the library window of his classroom. The substantive consequence is that Alberta is, in operational terms, building a K-12 architecture that violates the Article 24 obligation that students with disabilities *receive the support required, within the general education system, to facilitate their effective education* and that *effective individualized support measures are provided in environments that maximize academic and social development, consistent with the goal of full inclusion*.

Finding 2: The funding starvation is the structural mechanism through which the Article 24 violation is being delivered. Article 24 does not contemplate resource constraint as an acceptable basis for indefinite delay of the inclusive-education obligation. General Comment No. 4 explicitly establishes this point. Alberta has spent the least per student of any Canadian province for four consecutive years. The 17.5 percent inflation-adjusted decrease over the decade is the steepest of any Canadian province. The cumulative ~\$1 billion annual shortfall against the national average is the operational mechanism through which the educational-assistant capacity required for inclusion is not present in Alberta classrooms at the scale Article 24 requires. The Jordan's Principle eligibility collapse and the resulting hundreds of EA position cuts compound the structural shortfall. The provincial-government use of the resource constraint as the implicit justification for the segregated-classroom expansion is, on General Comment No. 4's framework, an unacceptable basis for the indefinite delay of the inclusive-education obligation. The funding starvation is not separate from the Article 24 violation; it is the substantive mechanism through which the violation is being implemented.

Finding 3: The Premier's April 17, 2026 statement is structurally inconsistent with Article 24. The Premier of Alberta stated publicly: *Kids in school can earn their way into inclusion, but they can earn their way out of it too*. The statement articulates a policy posture that frames inclusion as a contingent benefit available subject to the child's behaviour. Article 24, on its face and as interpreted by General Comment No. 4, establishes inclusion as a structural baseline that cannot be made conditional on the child's

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behaviour. The substantive content of the Premier's statement is, on the international legal framework, a repudiation of the Article 24 standard. The repudiation operates at the level of public policy articulation by the head of the provincial government bound by Canada's Convention ratification. The statement also operates as the political-rhetorical cover for the structural shift Findings 1 and 2 documented; the *earn inclusion* framing relocates responsibility for the segregation from the system to the child, providing political legitimacy for the substantive Article 24 violation that the funding shortfall and the segregated-classroom expansion together produce.

Finding 4: The 2022 candidate-Smith position was substantially closer to Article 24 compliance than the 2026 Premier position is, and the documented shift is a regression. As a UCP leadership candidate in 2022, the future Premier articulated inclusive education as a resourcing-and-staffing matter, identified parental choice for inclusion as the operational standard, and identified the elimination of seclusion-and-restraint measures as the policy goal contingent on adequate classroom staffing. The 2022 position was substantively closer to Article 24's operational standard than the 2026 position is. The shift between the 2022 candidate position and the 2026 Premier position is, in international legal framework terms, a regression rather than a progression. State Party regression on substantive Convention obligations is the subject of specific scrutiny under the Committee's periodic-review framework. Canada's next periodic report to the Committee will require addressing the Alberta documented record as part of Canada's overall Article 24 compliance position.

Finding 5: The consultation gap stands in tension with Article 4(3)'s consultation obligation. Article 4(3) of the Convention requires State Parties to *closely consult with and actively involve persons with disabilities, including children with disabilities, through their representative organizations* in the development and implementation of legislation and policies affecting persons with disabilities. The Alberta provincial-government structures designing the 2025-2026 reform of inclusive-education policy — the Class Size and Complexity Cabinet Committee and the Aggression and Complexity in Schools Action Team — are operating without disability-community representation. Inclusion Alberta CEO Trish Bowman's documented November 2025 position is that *there was no representation on the Action Team of parents or organizations with expertise in disability, mental health, behavioural challenges, or English Language Learners*. The structural exclusion of the disability community from the policy-development table at which the Article 24 implementation is being designed is a direct Article 4(3) compliance concern. The exclusion is not incidental to the Article 24 substantive violation; it is the procedural mechanism through which the substantive violation is being made possible.

Finding 6: The 2019 reversal of the seclusion-room ban and the operational seclusion-room record are compounding Article 24 violations. The 2018 New Democratic provincial government ban on seclusion rooms was the operational implementation of the principle that involuntary confinement of children with disabilities in locked rooms is inconsistent with the substantive standards of Canadian human-rights law and the international disability-rights framework. The 2019 United Conservative Party reversal, through Ministerial Order #042/2019, replaced the prohibition with a *standards* framework permitting the practices the ban had prohibited. The post-2019 operational record — 263 seclusion rooms across the province as of April 2024, 116 rooms across 11 of 59 divisions in 2024-25, 7,000+ confinements during the prior school year, and EPSB's 445 non-self-selected uses (35.89 percent of total uses) between September 2024 and April 2025 — establishes that the practice continues at scale. The

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seclusion-room expansion is a compounding Article 24 violation that operates within the segregated environments documented in Finding 1. The disproportionate impact on students with developmental and intellectual disabilities and the autism spectrum, documented in the 2018 Inclusion Alberta survey, places the practice within the General Comment No. 4 framework as a form of involuntary confinement that operates against the inclusive-education obligation. The phase-out trajectory at EPSB is in the right direction; the practice has not been eliminated, and continues at the St. Albert School Division and 10 other Alberta public and Catholic divisions.

Finding 7: The Alberta record is inconsistent with Article 24's reasonable accommodation requirement. Article 24 requires that *reasonable accommodation of the individual's requirements is provided* as the operational mechanism by which inclusive education is delivered. The disability-community advocacy documented in Part One Section 1.3a establishes that the Alberta system does not consistently provide the reasonable accommodation Article 24 requires. The Inclusion Alberta documented position — that adequate education-assistant staffing, training in positive behavioural strategies, and the elimination of seclusion-and-restraint practices are the operational means by which Article 24 compliance would be delivered — identifies the specific reasonable accommodations the Alberta system has not consistently provided. The denial of reasonable accommodation, on General Comment No. 4's framework, *counts as discrimination*. The Alberta operational record places the system in the category of State Party education systems that fail to provide reasonable accommodation as required by the Convention.

The seven findings are mutually reinforcing. Finding 1 (segregation as substantive violation) operates through Finding 2 (funding starvation as structural mechanism), is rationalized by Finding 3 (Premier's *earn inclusion* rhetoric as political cover), is documented as a regression by Finding 4 (2022-versus-2026 shift), is enabled by Finding 5 (Article 4(3) consultation gap), is operationally compounded by Finding 6 (seclusion-room expansion within segregated environments), and constitutes a direct violation of Finding 7 (reasonable accommodation requirement). The seven findings together establish that the Alberta engineered K-12 system operates in substantial tension with the Article 24 substantive standard at every operational level the international human rights framework addresses.

Implications for the Alberta Blueprint

The findings of Section 2.7a feed directly into the blueprint Part Three of this document develops. Seven implications are operationally significant.

Implication 1: The proposed Alberta accessibility legislation must include education as a stand-alone accessibility area on the Nova Scotia precedent (Part Two Section 2.4) and must operationalize Article 24 within the substantive provisions of the education-area standards. The substantive provisions must establish that inclusive education is the structural baseline for the Alberta K-12 system, that exclusion of children with disabilities from the general education system on the basis of disability is prohibited, that reasonable accommodation is the operational mechanism by which inclusion is delivered, and that the goal of all individualized support measures is full inclusion in the general education environment. The substantive provisions are the legislative implementation of Article 24 within Alberta provincial jurisdiction.

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Implication 2: The proposed Alberta accessibility legislation must require minimum educational-assistant staffing ratios and minimum-funding-floor provisions sufficient to deliver inclusive education in general education classrooms across the province. The funding shortfall documented in Section 1.3a is the structural mechanism through which the Article 24 violation is being delivered; the legislation must address the structural mechanism rather than only the rhetorical or operational manifestations. The substantive provisions must include defined per-student funding floors (calibrated to the national average rather than to the provincial historical average), minimum EA staffing ratios in general education classrooms (sufficient to deliver inclusive education without forcing displacement to segregated settings), and operational accountability mechanisms ensuring that funding and staffing commitments are delivered rather than announced and not delivered.

Implication 3: The proposed Alberta accessibility legislation must restrict the expansion of segregated educational settings and must establish a transition pathway from existing segregated programming to inclusive programming with adequate support. General Comment No. 4 explicitly requires State Parties to *transition existing segregated education systems to inclusive education systems*. The Alberta legislation must establish the transition pathway, must restrict the operational expansion of new segregated facilities and programs (including the proposed second Calgary Catholic specialized facility for fall 2026 and the EPSB Autism Centre of Excellence in the form currently proposed), and must require the conversion of existing specialized programming to inclusive programming with appropriate adaptations on a defined timeline. The transition must be resourced; the resourcing requirement is addressed in Implication 2.

Implication 4: The proposed Alberta accessibility legislation must prohibit the involuntary confinement of students in seclusion rooms. The 2018 New Democratic provincial government ban is the substantive operational model. The legislation must reverse the 2019 Ministerial Order #042/2019 framework and establish a prohibition on involuntary confinement that exceeds the operational standard the 2018 ban established. The prohibition must be structural rather than discretionary, must apply across all Alberta school divisions including charter schools and private schools, and must be enforceable through the same compliance and enforcement architecture established for other accessibility standards under the legislation.

Implication 5: The proposed Alberta accessibility legislation must establish positive behaviour support and reasonable accommodation as the operational alternatives to seclusion, restraint, and segregation. The Inclusion Alberta documented position — that adequate education-assistant staffing, training in positive behavioural strategies, and trauma-informed practice are the operational alternatives — is the substantive model. The legislation must require school divisions to implement these alternatives, must require minimum staffing ratios sufficient to support inclusion across all classroom settings, and must provide the funding mechanism through which the alternatives can be operationalized at scale.

Implication 6: The proposed Alberta accessibility legislation must include a mandatory consultation requirement for any provincial-government action affecting inclusive-education policy. The Article 4(3) substantive obligation is the model. The legislation must require structured consultation with persons with disabilities and disability-community representative organizations — including but not limited to Inclusion Alberta, the Alberta Council of Disability Services, and provincial chapters of national disability organizations — in the development of any subsequent inclusive-education

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policy. Consultation must be substantive rather than performative, must occur prior to the development of policy positions rather than after, and must be documented in the public record. The provisions must explicitly include consultation requirements for the replacement of the 2003 *Standards for Special Education* and for any subsequent revision of the inclusive-education policy framework.

Implication 7: The proposed Alberta accessibility legislation must include a public-record reporting cycle on inclusive-education implementation. The British Columbia framework's annual Ministerial reporting requirement (Part Two Section 2.5) and the Manitoba framework's mandatory five-year standards review cycle (Part Two Section 2.3) are the operational models. The Alberta legislation must require annual public reporting on inclusive-education implementation, on the operational use of any remaining seclusion-and-restraint practices during transition periods, on the operational status of the segregated-to-inclusive transition pathway, on the operational delivery of the EA staffing-floor commitments, and on the systemic indicators of Article 24 compliance. The reporting must be public, must be tabled in the Legislative Assembly, and must be subject to independent statutory review on a defined cycle.

What This Section Establishes

Section 2.7a establishes that Alberta's engineered K-12 architecture — the funding starvation, the segregated-classroom expansion, the Premier's *earn inclusion* rhetoric, the consultation gap, and the seclusion-room expansion — stands in substantial tension with the international human rights framework Canada has bound itself to under Article 24 of the United Nations *Convention on the Rights of Persons with Disabilities*.

The Article 24 standard, as interpreted by General Comment No. 4 of the Committee on the Rights of Persons with Disabilities, requires inclusive education as a structural baseline rather than as a contingent benefit, prohibits exclusion of children with disabilities from the general education system on the basis of disability, requires reasonable accommodation as the operational mechanism by which inclusion is delivered, requires positive behaviour support and other alternatives to seclusion-and-restraint practices, requires close consultation with persons with disabilities and disability-community representative organizations under Article 4(3), and requires structured transition from segregated or partially-segregated systems to inclusive systems on a State Party-determined timeline.

The Alberta record, on each of these substantive standards, stands in documented tension with the Article 24 obligation. The segregated-classroom expansion is the central Article 24 substantive violation. The funding starvation is the structural mechanism through which the violation is being delivered. The Premier's *earn inclusion* rhetoric is the political cover. The consultation gap is the procedural enabler. The seclusion-room expansion is the operational compounding harm within the segregated environments. The reasonable-accommodation failures are the cumulative consequence. The seven findings together establish that the Alberta engineered K-12 system operates in substantial tension with Article 24 at every operational level the international human rights framework addresses.

The tension is not theoretical. It is the documented operational reality within which Alberta children with disabilities are educated. The international legal framework provides the substantive language within

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which the gap can be evaluated and within which any subsequent legal, political, or advocacy challenge to the Alberta record will be conducted.

The blueprint Part Three develops will, on the findings of Section 2.7a and Part One Section 1.3a, propose specific statutory provisions for the *Alberta Accessibility and Inclusion Act* that operationalize Article 24's substantive standard within Alberta provincial jurisdiction. The statutory provisions will include education as a stand-alone accessibility area, will require minimum-funding-floor and minimum-EA-staffing-ratio provisions sufficient to deliver inclusive education without forcing displacement to segregated settings, will restrict segregated-setting expansion and establish a transition pathway to inclusive programming, will prohibit involuntary confinement in seclusion rooms, will require positive behaviour support and reasonable accommodation as the operational alternatives, will mandate structured consultation with persons with disabilities and the disability community, and will require public-record reporting and statutory review.

The case for these substantive provisions has now been made on the documented record of Part One Section 1.3 (the architecture Alberta has built around children with disabilities), Part One Section 1.3a (the engineered three-part repudiation of inclusion in the Alberta K-12 system from 2018 to 2026), Part Two Section 2.7 (the international human rights framework Canada has bound itself to), and Part Two Section 2.7a (the Article 24 substantive standard and the documented Alberta tension with that standard at the segregation-funding-rhetoric-consultation-seclusion-accommodation level). Part Three turns to the constructive design of the legislation that would close the gap.